

Practitioner Reseller & Advertising Policy

Last Revised: July 19, 2026

NutraAxis Labs, LLC (“NutraAxis”), sells NutraAxis-branded products (“Products”) for resale to and through licensed healthcare practitioners who have applied for and been approved for a NutraAxis practitioner account (“Practitioner”).

By creating or maintaining a NutraAxis practitioner account, Practitioner acknowledges receipt of this Policy and agrees to comply with its terms as a condition of continued wholesale purchasing access.

NutraAxis has adopted this Policy to ensure Products are sold by qualified practitioners in a manner that supports patient education and preserves the clinical positioning of the NutraAxis brand. A Practitioner who does not comply with this Policy may lose wholesale purchasing access and the right to use NutraAxis trademarks, as described in Section 11 (Monitoring and Enforcement).

1. Applicability

This Policy applies to all resale of Products, regardless of how they were acquired — directly from NutraAxis, through a NutraAxis-approved platform, or otherwise.

2. Authorized Sales Channels

Practitioners may sell Products to the public only through the following channels:

- NutraAxis Storefront — the branded, Practitioner-specific online store provisioned through the NutraAxis platform, on which retail pricing is set and maintained by NutraAxis.
- In-Clinic Sale — direct sale to the Practitioner’s own patients, from a dispensary located within the Practitioner’s own healthcare practice.
- Practitioner Clinic Site — an independently operated website or online store owned and operated by the Practitioner, which may also offer other brands, products, or services to the Practitioner’s patients, provided that:
 - any price for a Product shown to the general public — meaning not gated behind a patient login or account — is at or above the current iMAP (NutraAxis’s published MSRP floor); and
 - reduced or below-iMAP pricing is offered only within a private, patient-account-gated area of the site, consistent with the private-pricing terms in Section 5.

No other sales channel is authorized. A Practitioner Clinic Site remains subject to all other provisions of this Policy — including Section 5 (iMAP), Section 7 (Trademarks), Section 8 (No Disease Claims), and Section 9 (Product Handling) — with respect to any Product-related content it displays.

3. Prohibited Channels

Practitioners may not advertise, list, offer, or sell Products on any third-party online marketplace — including but not limited to Amazon, Walmart, eBay, Facebook Marketplace, TikTok Shop, and Etsy — under any seller name or account, whether operated directly by the Practitioner or through a third party. NutraAxis reserves the right to notify any such marketplace that a listing violates this Policy and to demand its removal.

Products may also not be offered for sale in retail establishments, at trade show booths, kiosks, or in any other non-clinical setting.



This Section does not apply to a Practitioner's own Clinic Site described in Section 2 — that channel is authorized, subject to the pricing conditions in Section 2 and Section 5.

4. No Sales for Resale

Products may not be sold or transferred, directly or indirectly, to any person or entity that Practitioner reasonably expects may resell the Products to a third party, including any unauthorized reseller or distributor.

5. Minimum Advertised Price (iMAP) Policy

NutraAxis has determined that advertising Products below a level sufficient to support quality patient education undermines the investment other Practitioners have made in the brand and NutraAxis's reputation with patients. NutraAxis has therefore adopted this unilateral iMAP Policy, which applies equally to every Practitioner.

NutraAxis publishes a current iMAP for each Product in the Practitioner Portal. A Practitioner may sell Products at any price; however, any Public Facing Advertising of price must be at or above the current iMAP.

"Public Facing Advertising" means any communication to non-patients, including a website, blog, social media post or ad, printed material, in-clinic signage visible to the public, or any other public or publicly searchable communication. It does not include prices communicated privately to an individual patient — in person, by phone, by secure message, through a password-protected patient portal, or on an invoice or receipt after a sale.

Advertising that states or implies Products are available below iMAP — including "see price in cart," discount or coupon codes, or bundling framed to suggest an equivalent price below iMAP — is prohibited.

iMAP pricing is set unilaterally by NutraAxis, is subject to change at any time, and is not open to negotiation with any Practitioner.

6. Confidentiality of Wholesale Pricing

The price at which NutraAxis sells Product to Practitioners is confidential. Practitioners may not disclose their wholesale purchase price to any person or entity other than those professionally associated with their practice who have a legitimate need to know (e.g., an accountant or office staff).

7. Trademarks and Marketing Materials

NutraAxis owns all rights in the NutraAxis name, logos, trademarks, and related intellectual property ("NutraAxis IP"). NutraAxis maintains a Marketing Toolkit of approved images, product descriptions, and other content for Practitioner use. Practitioner is granted a limited, non-exclusive, revocable license to use NutraAxis IP found in the Marketing Toolkit, in the form supplied, solely to market and sell Products. Content not found in the Marketing Toolkit is not authorized for use. This license ends if Practitioner's account is terminated.

8. No Disease Claims

NutraAxis Products are dietary supplements. Practitioners may not display, state, or imply any disease claim in connection with Products. Only structure/function statements published on NutraAxis.com or in the Marketing Toolkit may be used. These statements have not been evaluated by the FDA. Products are not intended to diagnose, treat, cure, or prevent any disease.

9. Product Handling

Practitioner shall sell Products only in their original, unaltered packaging and shall not relabel, repackage, or alter any lot code, UPC, or other identifying information. Practitioner shall store Products consistent with label instructions and will cooperate with NutraAxis on any product recall or safety communication.

10. Reporting Unauthorized Resale

A Practitioner who becomes aware of unauthorized resale or distribution of Products should promptly notify NutraAxis.

11. Monitoring and Enforcement

NutraAxis monitors public pricing and marketplace listings and reviews complaints from Practitioners, patients, and partners. Enforcement is tiered:

- First violation: written notice identifying the violation, with a 5-business-day period to correct it. No account action if cured within the window.
- Second violation, or failure to cure the first: wholesale pricing is suspended for a minimum of 30 days or until NutraAxis verifies correction, whichever is later.
- Third violation: the Practitioner's wholesale account is terminated.
- Any listing on a prohibited marketplace (Section 3) is treated as an automatic escalation to immediate suspension on first discovery, regardless of prior history.

Enforcement decisions are made solely by NutraAxis, in its sole discretion, and are not subject to negotiation.

12. Updates to This Policy

NutraAxis may revise this Policy, the iMAP schedule, or the list of prohibited marketplaces at any time. Updates take effect upon posting to the Practitioner Portal. Continued use of a NutraAxis practitioner account after an update constitutes acceptance of the update.

13. No Waiver

NutraAxis's failure to enforce any provision of this Policy at any time does not waive its right to enforce that provision later.

14. Acknowledgment

This Policy is presented to every Practitioner online, as a required step within the practitioner account sign-up flow, and remains available at all times in the Practitioner Portal. Registration cannot be completed until the Practitioner affirmatively checks the box below and submits the sign-up form:

☐ *"I have read and acknowledge the NutraAxis Practitioner Reseller & Advertising Policy."*

Upon submission, NutraAxis's system records the Practitioner account, the date and time of acknowledgment, and the version of this Policy acknowledged, as part of the standard account sign-up record. This record serves as evidence that Practitioner received notice of this Policy; it is not a negotiated agreement to any specific price (see Appendix).

15. Questions

Questions about this Policy should be directed to NutraAxis Practitioner Support (support@nutraaxislabs.com)



Prepared as a working draft for legal review prior to publication on the NutraAxis practitioner website. Recommend confirming: (1) the acknowledgment mechanism in Section 14 does not undermine the unilateral character of Section 5; (2) state-specific resale-price-maintenance and franchise/dealer-termination rules that may apply to suspension or termination; and (3) FDA/FTC substantiation review of Section 8.

Appendix: Internal Guidance on Unilateral (Colgate) Enforcement

This appendix is for NutraAxis staff and legal counsel only. It is attached here for convenience during legal review and should be removed before this document is published.

Section 5 (iMAP Policy) is drafted as a unilateral policy consistent with the Colgate doctrine (United States v. Colgate & Co., 250 U.S. 300 (1919)): NutraAxis announces pricing terms in advance and decides, in its own discretion, whether to continue dealing with a given Practitioner — rather than obtaining Practitioner agreement to specific prices. This keeps the policy outside Sherman Act Section 1's reach for a true vertical price-fixing agreement. Section 14's acknowledgment mechanism is intended only to establish notice/receipt, not agreement to price terms; legal should confirm the wording achieves that distinction.

To preserve this structure, NutraAxis sales, marketing, and account management personnel must not:

- Ask a Practitioner to negotiate, sign, or verbally agree to specific pricing terms beyond acknowledging receipt of this Policy.
- Negotiate iMAP levels, enforcement timing, or account status with a Practitioner.
- Share one Practitioner's pricing, volume, or compliance status with another Practitioner.

Route questions about enforcement in a specific case to Legal/Compliance before any communication with the Practitioner.